

		Woman's Recovery Center in accordance with the Settlement Agreement (which includes a credit of \$10,400 for payment Woman's Recovery Center has made). Accordingly, the court will enter an amended judgment against both Woman's Recovery Center and Schrier, jointly and severally, in the amount of 83,826.04, which includes all interest accrued and payments made. Plaintiff is ordered to submit a proposed amended judgment consistent with this ruling and that includes a breakdown of all components making up the judgment, i.e., principal, interest, etc. Plaintiff is further ordered to give notice of this ruling.
9.	ERN Enterprises, Inc. v. Pipeline East Dallas, LLC <i>2025-01457551</i>	Before the court is the petition to compel arbitration brought by petitioner ERN Enterprises, Inc. (Petitioner). Pursuant to Code of Civil Procedure sections 1281.2 and 1290, the petition is GRANTED. Respondent Pipeline East Dallas, LLC (Respondent) is ordered to arbitrate Petitioner's claim for breach of the Claim Representation Agreement. Additionally, this action is ordered stayed, pending completion of arbitration. (Code Civ. Proc., § 1281.4.) Petitioner sufficiently served Respondent pursuant to the requirements of Code of Civil Procedure section 1290.4. A review of the applicable agreement indicates the parties did not agree to a form of service. (§3 of Anu Norwood Declaration and Exhibit 1 thereto.) Consequently, the service requirements of Code of Civil Procedure section 1290.4, subdivision (b) apply. Per the proof of service filed on March 5, 2025, Respondent was personally served with the petition and supporting papers, on February 10, 2025, via an agent for service of process. (ROA No. 13.) A proof of service filed on March 18, 2025, demonstrates notice of this hearing was personally served in the same manner on March 10, 2025. (ROA No. 21.) The above fully complies with Code of Civil Procedure section 1290.4, subdivision (b)(1). Additionally, although not necessary, Petitioner complied with the service requirements of Code of Civil Procedure section 1290.4, subdivision (b)(2). (See ROA Nos. 11 and 19.)

	"On petition of a party to an arbitration agreement alleging the existence of a written agreement to arbitrate a controversy and that a party to the agreement refuses to arbitrate that controversy, the court shall order the petitioner and the respondent to arbitrate that controversy if it determines that an agreement to arbitrate the controversy exists, unless it determines that: (a) The right to compel arbitration has been waived by the petitioner; or (b) Grounds exist for rescission of the agreement." (Code Civ. Proc., § 1281.2, subds. (a) & (b).) "The allegations of a petition [to compel arbitration] are deemed to be admitted by a respondent duly served therewith unless a response is duly served and filed." (Code Civ. Proc., § 1290.) "A response shall be served and filed within 10 days after service of the petition except that if the petition is served in the manner provided in paragraph (2) of subdivision (b) of Section 1290.4, the response shall be served and filed within 30 days after service of the petition." (Code Civ. Proc., § 1290.6.) Respondent failed to file a response to the petition. Consequently, Respondent has admitted all allegations in the petition, including the existence of a binding arbitration agreement which applies to Petitioner's claim for breach of contract and Respondent's failure to arbitrate. (See Petition: 3:3-16, 3:21-25, 4:5-9, 4:13-23 and 7:5-18; see also Code Civ. Proc., § 1290.) Included within the moving papers is a Claimant Representation Agreement between Pipeline East Dallas, LLC and ERN Enterprises, Inc. (¶3 of Anu Norwood Declaration and Exhibit 1 thereto.) The agreement includes signatures on behalf of both entities, along with an arbitration provision which states: "In the event a dispute arises between the Parties hereto, the Parties agree to mediate the dispute prior to the filing of any action or commencement of arbitration. In the event the dispute is not resolved in mediation, then the parties agree to resolve the dispute by means of binding arbitration before the Judicial Arbitration & Mediation Services (JAMS), Orange County, California" (<i>Ibid.</i> at §12)
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	"If the moving party meets its initial prima facie burden and the opposing party does not dispute the existence of the arbitration agreement, then nothing more is required for the moving party to meet its burden of persuasion." (<i>Gamboa v. Northeast Community, Clinic</i> (2021) 72 Cal.App.5th 158, 165, [disagreed with by <i>Ramirez v. Golden Queen Mining Company, LLC</i> (2024) 102 Cal.App.5th 821, on a different point].) Here, as Respondent did not file a response or opposition to this petition, there is no dispute it validly executed the above agreement, which contains the arbitration provision. Similarly, there is no dispute Petitioner's alleged claim for breach of contract is encompassed within the arbitration agreement. In addition to the agreement broadly referencing "any dispute," Petitioner has demonstrated the specific dispute herein arises from the terms of the Claimant Representation Agreement – the contract which contains the arbitration provision. Per Petitioner, "[i]n the CRA, Pipeline agreed to compensate and pay ERN on recoveries according to the type of claim pursuant to the percentages in Section 4 of the CRA." (§4 of Anu Norwood Declaration.) "ERN performed the contracted-for services of regulatory claimant representation and advocacy for uncompensated medical claims . . . [and] submitted invoices to Pipeline . . . but Pipeline failed and refused to pay the invoices." (§6 of Anu Norwood Declaration.) In addition to the above, the agreement makes clear jurisdiction and venue in Orange County is appropriate. (§3 of Anu Norwood Declaration and Exhibit 1 thereto, at §12.) Finally, Petitioner has established that Respondent refused to mediate, prior to arbitration. (§8 of Anu Norwood Declaration ["On October 21, 2024, counsel for ERN sent a demand for mediation to Pipeline pursuant to Paragraph 12 of the CRA, which was ignored by Pipeline"].) Likewise, Respondent has refused to arbitrate, such that an order compelling arbitration is required. (§3 of Zuetel Declaration and Exhibit 5 thereto.) A party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. (<i>Engalla v. Permanente</i>
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		<i>Medical Group, Inc.</i> (1997) 15 Cal.4th 951, 972.) As a response and opposition have not been filed, Respondent has failed to demonstrate any defense to arbitration. Petitioner's counsel is ordered to give notice.
10.	Wesco Insurance Company v. BC Home Builders 2020-01169405	Before the court is the motion for entry of judgment in accordance with written settlement agreement. The motion is GRANTED as set forth below. On November 10, 2020, plaintiff Wesco Insurance Company (Plaintiff) filed a complaint alleging breach of contract against defendant BC Home Builders, a corporation and dba Battres Construction (Defendant). On March 2, 2022, the parties entered into a written settlement agreement and notice of settlement was filed. (ROA 93) A copy of the settlement agreement is attached as Exhibit A to the motion. The settlement agreement called for a judgment to be entered in favor of Plaintiff and against Defendant, the entry of which was "stayed unless there be an event of default under this Agreement and failure to cure as hereinafter provided." (Settlement Agreement at Section 2.A.ii) Wesco states Defendant has defaulted and failed to cure despite being provided notice of the default. (Aires Decl. ¶4.) A copy of the written notice to cure, as required by section 3.A of the Settlement Agreement, is attached as Exhibit B to the motion. Code of Civil Procedure section 664.6 "was enacted to provide a summary procedure for specifically enforcing a settlement contract without the need for a new lawsuit." (<i>Weddington Productions, Inc. v. Flick</i> (1998) 60 Cal.App.4th 793, 809.) Personal consent to the material terms of the settlement by each of the parties is a statutory prerequisite to a 664.6 motion. (<i>Critzer v. Enos</i> (2010) 187 Cal.App.4th 1242, 1257-1258.) "A court ruling on a motion under Code of Civil Procedure section 664.6 must determine whether the parties entered into a valid and binding settlement . . . A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms . . . The court ruling on the motion may consider the parties' declarations and other evidence in deciding what terms the parties agreed to, and the court's factual findings in this regard are reviewed under the substantial evidence standard . . . If the court